

2ND SCH.
—cont.

PART IV.

1. Session and Chapter.	2. Short Title.	3. How far continued.	4. Amending Acts.
(25) 59 & 60 Vict. c. 16.	The Agricultural Rates Act, 1896.	The whole Act -	2 Edw. 7. c. 42. 7 Edw. 7. c. 13.
(26) 59 & 60 Vict. c. 37.	The Agricultural Rates, Congested Districts, and Burgh Land Tax Relief (Scotland) Act, 1896.	The whole Act -	60 & 61 Vict. c. 53. 7 Edw. 7. c. 13. 1 & 2 Geo. 5. c. 49.
(27) 13 & 14 Geo. 5. c. 39.	The Agricultural Rates Act, 1923.	The whole Act, except section fifteen.	15 Geo. 5. c. 10.

CHAPTER 77.

An Act to confirm and give effect to a certain Agreement amending and supplementing the Articles of Agreement for a Treaty between Great Britain and Ireland to which the force of law was given by the Irish Free State (Agreement) Act, 1922, and by the Constitution of the Irish Free State (Saorstát Eireann) Act, 1922.

[10th December 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Confirma-
tion of
Agreement.

1.—(1) The Agreement set forth in the Schedule to this Act, being an Agreement amending and supplementing the Articles of Agreement for a Treaty between

Great Britain and Ireland, to which the force of law was given by the Irish Free State (Agreement) Act, 1922, and by the Constitution of the Irish Free State (Saorstát Éireann) Act, 1922, is hereby confirmed, and the said Articles of Agreement for a Treaty and the Irish Free State (Agreement) Act, 1922, shall have effect accordingly.

(2) The date as from which the powers in relation to Northern Ireland, which by the Government of Ireland Act, 1920, are made powers of the Council of Ireland, are to be transferred to the Parliament and Government of Northern Ireland, shall be the first day of April, nineteen hundred and twenty-six, and that day shall, in relation to the transfer of those powers, be the appointed day for the purposes of the Government of Ireland Act, 1920; and as from that day so much of the Government of Ireland Act, 1920, and the Irish Free State (Consequential Provisions) Act, 1922 (Session 2), as relates to the Council of Ireland is hereby repealed:

Provided that this repeal shall not affect the provisions of subsection (2) of section ten of the Government of Ireland Act, 1920, as modified by paragraph 3 of the First Schedule to the Irish Free State (Consequential Provisions) Act, 1922 (Session 2) with respect to the rates, fares, tolls, dues and other charges authorised to be charged by railway companies in Northern Ireland or the powers of the Railway and Canal Commission thereunder, until fresh provision is made by the Parliament of Northern Ireland with regard to the amount of any such rates, fares, tolls, dues and other charges.

2.—(1) This Act may be cited as the Ireland (Confirmation of Agreement) Act, 1925.

Short title
and com-
mencement.

(2) This Act shall come into operation on the date on which the said Agreement is confirmed by Act of the Parliament of the Irish Free State, or if such an Act is passed before the passing of this Act shall come into operation on the passing of this Act.

SCHEDULE.

- AGREEMENT AMENDING AND SUPPLEMENTING THE ARTICLES OF AGREEMENT FOR A TREATY BETWEEN GREAT BRITAIN AND IRELAND TO WHICH THE FORCE OF LAW WAS GIVEN BY THE IRISH FREE STATE (AGREEMENT) ACT, 1922, AND BY THE CONSTITUTION OF THE IRISH FREE STATE (SAORSTAT EIREANN) ACT, 1922.

WHEREAS on the sixth day of December nineteen hundred and twenty-one Articles of Agreement for a Treaty between Great Britain and Ireland were entered into :

And whereas the said Articles of Agreement were duly ratified and given the force of law by the Irish Free State (Agreement) Act, 1922, and by the Constitution of the Irish Free State (Saorstat Eireann) Act, 1922 :

And whereas the progress of events and the improved relations now subsisting between the British Government, the Government of the Irish Free State, and the Government of Northern Ireland, and their respective peoples, make it desirable to amend and supplement the said Articles of Agreement, so as to avoid any causes of friction which might mar or retard the further growth of friendly relations between the said governments and peoples :

And whereas the British Government and the Government of the Irish Free State being united in amity in this undertaking with the Government of Northern Ireland, and being resolved mutually to aid one another in a spirit of neighbourly comradeship, hereby agree as follows :—

1. The powers conferred by the proviso to Article 12 of the said Articles of Agreement on the Commission therein mentioned are hereby revoked, and the extent of Northern Ireland for the purposes of the Government of Ireland Act, 1920, and of the said Articles of Agreement, shall be such as was fixed by subsection (2) of section one of that Act.

2. The Irish Free State is hereby released from the obligation under Article 5 of the said Articles of Agreement to assume the liability therein mentioned.

3. The Irish Free State hereby assumes all liability undertaken by the British Government in respect of malicious damage done since the twenty-first day of January nineteen hundred and nineteen to property in the area now under the jurisdiction of the Parliament and Government of the Irish Free State, and the Government of the Irish Free State shall repay to the British

Government, at such time or times and in such manner as may be agreed upon, moneys already paid by the British Government in respect of such damage, or liable to be so paid under obligations already incurred.

4. The Government of the Irish Free State hereby agrees to promote legislation increasing by ten per cent the measure of compensation under the Damage to Property (Compensation) Act, 1923, in respect of malicious damage to property done in the area now under the jurisdiction of the Parliament and Government of the Irish Free State between the eleventh day of July, nineteen hundred and twenty-one, and the twelfth day of May, nineteen hundred and twenty-three, and providing for the payment of such additional compensation by the issue of Five per Cent Compensation Stock or Bonds.

5. The powers in relation to Northern Ireland which by the Government of Ireland Act, 1920, are made powers of the Council of Ireland, shall be and are hereby transferred to and shall become powers of the Parliament and the Government of Northern Ireland; and the Governments of the Irish Free State and of Northern Ireland shall meet together as and when necessary for the purpose of considering matters of common interest arising out of or connected with the exercise and administration of the said powers.

6. This Agreement is subject to confirmation by the British Parliament and by the Oireachtas of the Irish Free State, and the Act of the British Parliament confirming this Agreement shall fix the date as from which the transfer of the powers of the Council of Ireland under this Agreement is to take effect.

Dated this 3rd day of December, 1925.

Signed on behalf of the
British Government.

STANLEY BALDWIN.
WINSTON S.
CHURCHILL.
W. JOYNSON-HICKS.
BIRKENHEAD.
L. S. AMERY.

Signed on behalf of the
Government of the
Irish Free State.

LIAM T. MACCOSAIR.
KEVIN O'HIGGINS.
EARNÁN DE BLAGHD.

Signed on behalf of
the Government of
Northern Ireland.

JAMES CRAIG.
CHARLES H.
BLACKMORE,
Secretary to the
Cabinet of
Northern Ireland.
